

HOUSE No. 3240

The Commonwealth of Massachusetts

PRESENTED BY:

Adam J. Scanlon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to shopping malls.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>1/16/2025</i>

HOUSE No. 3240

By Representative Scanlon of North Attleborough, a petition (accompanied by bill, House, No. 3240) of Adam J. Scanlon for legislation to establish a local option tax on owners of certain shopping malls. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to shopping malls.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 59 of the General Laws is hereby amended by inserting after Section 5O the
2 following section:-

3 Section 5P. (a) For the purposes of this section, the following term shall, unless the
4 context clearly requires otherwise, have the following meanings:

5 “Enclosed shopping mall”, an enclosed indoor center containing common areas, retail
6 businesses, service businesses and other commercial spaces.

7 (b) A municipality that accepts this section in the manner provided in section 4 of chapter
8 4 may levy a tax on the owner of an enclosed shopping mall, at a rate to be determined by the
9 municipality, if the shopping mall: (i) has less than a 67 per cent occupancy rate for its available
10 retail spaces for a continuous period of at least 9 months; and (ii) does not convert at least a
11 certain proportion of its property, to be determined by the municipality, to other uses, to be
12 determined by the municipality, for lease or sale.